

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Proposed Administrator of the Estate of Decedent, MALIK
CHAVIS; and MARTIN CHAVIS, individually and as
Guardian of the Property of Minor "A.C.";

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer PHILLIP PENA,
individually and in his/her official capacities; Police Officer
DESCURE, individually and in his/her official capacities;
Police Officer PATRICK ESPEUT; individually and in
his/her official capacities; Police Officer DIARA CRUZ,
individually and in his/her official capacities; Detective
ROBERT L. SIMMS; individually and in his/her official
capacities; and NYPD Officers JOHN and JANE DOE 1
through 10, individually and in their official capacities (the
names John and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.
-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
February 4, 2019

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer PHILLIP PENA, PSA 7, 737 Melrose Avenue, Bronx, NY 10455

Police Officer DESCURE, PSA 7, 737 Melrose Avenue, Bronx, NY 10455

Police Officer PATRICK ESPEUT, PSA 7, 737 Melrose Avenue, Bronx, NY 10455

Police Officer DIARA CRUZ, PSA 7, 737 Melrose Avenue, Bronx, NY 10455

Detective ROBERT L. SIMMS, Force Investigation Unit, 1 Police Plaza, New York, NY 10007

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Defendants.

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PLAINTIFF MARTIN CHAVIS, by PLAINTIFF'S attorney, the LAW OFFICE OF
KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF MARTIN CHAVIS, is an African American male and has been at all
relevant times a resident of County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

VERIFIED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants P.O. PHILIP PENA; P.O. DESCUE; P.O. PATRICK ESPEUT; P.O. DIARA CRUZ; Detective ROBERT L. SIMMS; and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

JURISDICTION AND VENUE

8. This action is brought pursuant to New York State Law, 42 U.S.C. Act of 1871, §§ 1983 and 1988, including its Eighth and Fourteenth Amendments to the Constitution of the United States.

9. Venue is proper in this county as the transactions and occurrences were in Bronx County.

10. PLAINTIFFS have complied with all conditions precedent to suit.

11. A Notice of Claim was timely filed, a 50-H hearing was held, and the claim has not yet been adjusted or paid.

12. The decedent, MALIK CHAVIS, died on February 4, 2016.

13. The decedent, MALIK CHAVIS, is survived by one minor child, infant, "A.C."

14. On or about January 18, 2019, MARTIN CHAVIS, the father of MALIK CHAVIS, became guardian of the property of minor "A.C."

15. MALIK CHAVIS is in the process of applying of letters of administration; to date, no letters of administration have been issued.

JURY DEMAND

16. PLAINTIFFS demand a trial by jury in this action.

STATEMENT OF FACTS

17. On or about February 4, 2016 at or around 8:00 p.m., the decedent, MALIK CHAVIS, was lawfully within the vicinity of 320 east 156th Street, Bronx, New York.

18. Several unidentified New York City Police Officers, including defendants PENA; DESURE; ESPEUT; CRUZ and SIMMS, and the JOHN/JANE DOE defendants violated the rights of the decedent, MALIK CHAVIS, including the state and constitutional rights to be free from use of excessive force, deliberate indifference to medical treatment, *inter alia*.

19. The individual defendants unlawfully stopped and detained the decedent.

20. The individual defendants used excessive force, assaulted and battered the decedent, and caused the decedent to experience pain and suffering.

21. The individual defendants were deliberately indifferent to the safety and medical needs of the decedent.

22. The individual defendants were negligent in the execution of their duties, including their investigation of the incident.

23. The acts and omissions of the individual defendants caused or contributed to the death of the decedent.

24. The individual defendants fabricated and concealed evidence so as to avoid repercussions.

25. The City of New York, through its unconstitutional policies, negligent training, hiring and retention of its employees, deprived the decedent of his rights under state and federal law, and are otherwise liable under the theory of *respondeat superior*.

CLAIM ONE
UNLAWFUL STOP, SEARCH, AND SEIZURE

26. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

27. As a result of the aforesaid conduct by defendants, the person of the decedent, MALIK CHAVIS and his possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM TWO
FALSE ARREST/IMPRISONMENT

28. PLAINTIFFS repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

29. Defendant police officers arrested the decedent MALIK CHAVIS in the absence of probable cause and without a valid warrant.

30. As a result of the aforesaid conduct by defendants, MALIK CHAVIS was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

31. As a result of the foregoing false imprisonment, MALIK CHAVIS's liberty was restricted for an extended period of time, MALIK CHAVIS was put in fear for his safety, was humiliated and subjected to handcuffing and other physical restraints.

32. MALIK CHAVIS was conscious of said confinement and did not consent to same.

33. The confinement of MALIK CHAVIS was without probable cause and was not otherwise privileged.

34. As a result of the aforementioned conduct, MALIK CHAVIS has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

CLAIM THREE
MALICIOUS ABUSE OF PROCESS

35. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

36. The individual defendants issued legal process to place MALIK CHAVIS under arrest.

37. The Municipal Defendants arrested MALIK CHAVIS and lied in the subsequent investigation in order to obtain collateral objectives outside the legitimate ends of the legal process.

38. The Municipal Defendants acted with intent to do harm to MALIK CHAVIS without excuse or justification.

39. As a direct and proximate result of this unlawful conduct, MALIK CHAVIS sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FOUR
UNREASONABLE FORCE

40. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

41. The defendants violated the Fourth and Fourteenth Amendments and New York

State Law because they used unreasonable, excessive, and unjustified force on MALIK CHAVIS.

42. As a direct and proximate result of this unlawful conduct, MALIK CHAVIS sustained the damages hereinbefore alleged.

CLAIM FIVE
FAILURE TO INTERVENE

43. PLAINTIFFS repeat and reallege each and every allegation as if fully set forth herein.

44. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

45. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

46. As a direct and proximate result of this unlawful conduct, MALIK CHAVIS sustained the damages hereinbefore alleged.

CLAIM SIX
ASSAULT and BATTERY

47. PLAINTIFFS repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

48. Defendants' aforementioned actions placed MALIK CHAVIS in apprehension of imminent harmful and offensive bodily contact.

49. Defendant police officers touched MALIK CHAVIS in a harmful and offensive manner.

50. Defendant police officers did so without privilege or consent from MALIK CHAVIS.

51. As a result of defendant's conduct, MALIK CHAVIS has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM SEVEN
WRONGFUL DEATH, PERSONAL INJURY, SURVIVORSHIP ACTION

52. PLAINTIFFS incorporate all allegations of the previous paragraphs as if fully set out.

53. Plaintiffs seek damages for the injuries, pain and suffering, that were sustained by the decedent before he died that he could have pursued in court if death had not occurred, and any other damages stemming from his death as applicable under New York State Wrongful Death Statute and any applicable Federal Law.

54. Defendants had a duty of care in their interactions with the decedent.

55. Defendants violated their duty of care to the decedent.

56. The defendant's violation of their duty of care to the decedent and the Defendants otherwise wrongful conduct, was a direct and proximate cause in bringing about the decedent's death.

57. Due to the negligence and otherwise wrongful conduct of the defendants, defendants liable for the injuries are, pain and suffering, that were sustained by the decedent before he died.

58. Moreover, as the Individual Defendants were acting within the scope and course of his/her employment with defendant CITY, defendant CITY is liable under any applicable State and Federal Laws.

CLAIM EIGHT
WRONGFUL DEATH

59. PLAINTIFFS incorporate all allegations of the previous paragraphs as if fully set out.

60. Plaintiffs bring this claim for pecuniary injuries resulting from decedent's death, loss of parental support, including a parent's nurture, intellectual, moral and physical training and such instruction as can only proceed from a parent, as well as any other damages that are recoverable under New York State Law and any applicable Federal Law.

61. Defendants had a duty of care in their interactions with the decedent.

62. Defendants violated their duty of care to the decedent.

63. The defendant's violation of their duty of care to the decedent, and the Defendants otherwise wrongful conduct, was a direct and proximate cause in bringing about the decedent's death.

64. Due to the negligence and otherwise wrongful conduct of the Individual Defendants, Defendants are liable for pecuniary injuries resulting from decedent's death, loss of parental support, including a parent's nurture, intellectual, moral and physical training and such instruction as can only proceed from a parent, as well as any other damages that are recoverable under New York State Law.

65. Moreover, as the Individual Defendants were acting within the scope and course of his/her employment with defendant CITY, defendant CITY is liable under any applicable State and Federal Law.

COUNT NINE
DELIBERATE INDIFFERENCE

66. Defendants were deliberately indifferent to the decedent's serious medical needs and risk of safety and thereby violated the decedent's rights under the United States Constitution.

67. Moreover, the violations of the decedent's constitutional rights under the Eighth and/or Fourteenth Amendments to the United States Constitution, Plaintiffs' damages, and the conduct of the individual defendants were directly and proximately caused by the actions and/or inactions of defendants which have, with deliberate indifference, failed to establish policies, practices, procedures and training regarding the treatment of individuals who sustained gunshot wounds.

68. As Defendants were deliberately indifferent to decedent's serious medical needs, DEFENDANTS are liable to PLAINTIFFS.

CLAIM TEN
DEPRIVATION OF FEDERAL RIGHTS

69. PLAINTIFFS repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

70. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

71. All of the aforementioned acts deprived MALIK CHAVIS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

72. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

73. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM ELEVEN
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

75. PLAINTIFFS repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

76. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

77. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

78. Due to the negligence of the defendants as set forth above, MALIK CHAVIS suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

CLAIM TWELVE
MUNICIPAL LIABILITY

79. PLAINTIFFS repeat and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

80. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

81. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with investigations of misconduct in order to avoid repercussions;

82. The foregoing customs, policies, usages, practices, procedures and rules of the

City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the MALIK CHAVIS.

83. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the MALIK CHAVIS as alleged herein.

84. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the MALIK CHAVIS as alleged herein.

85. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the MALIK CHAVIS's constitutional rights.

86. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the MALIK CHAVIS's constitutional rights.

87. The acts complained of deprived the MALIK CHAVIS of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFFS respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
February 4, 2019

_____/s/_____
Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorney for MARTIN CHAVIS in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
February 4, 2019

_____/S/_____
Katherine E. Smith